1. POLICY STATEMENT:

_____ complies with _____ Statute _____ , which requires compensation to be paid to Employees for job-related injuries, disability or death that arise out of and in the course of employment. Reporting, response, and follow-up to such incidents are completed in a timely fashion to ensure compliance with the regulations and best outcomes for Employees.

2. PURPOSE:

The purpose of this policy is to provide guidance for the timely reporting of Employee's work-related injuries and illnesses, explanation of required steps when such incidents occur, rules regarding return-to-work duties following such events, and any corrective actions needed to prevent further occurrences.

3. SCOPE:

This policy applies to all _____ locations, its wholly owned or controlled subsidiaries and managed entities.

4. DEFINITION:

Medical Review Officer (MRO): a licensed physician who has knowledge of substance abuse disorders and has appropriate medical training to interpret and evaluate an individual's positive test results together with his or her medical history and any other relevant biomedical information.

5. PROCEDURE:

a. Reporting of work-related incidents, injuries or illnesses

(1) _____ is the only recognized means of reporting a work-related incident.

(2) The affected employee completes an incident report for each work-related incident or any situation that has the potential to cause a work-related illness or injury, during the same shift or within twenty-four (24) hours of the incident.

(3) Following such an occurrence report, the employee reports the incident to his/her direct leader for that shift and any identified opportunities for safety improvements are determined and documented.

(4) If an employee is unable to report the incident, the direct manager responsible for monitoring the performance of the employee on the shift when the incident occurred is responsible for completion of report. The report is completed during the same shift or within twenty-four (24) hours of the incident.

(5) Failure to complete a report for a work-related incident in a timely manner may result in loss of benefits as outlined in the _____ Workers' Compensation Statute.

b. Responses to work-related incidents, injuries and illnesses

(1) If the employee cannot safely perform his/her duties without further injury to them or others, he/she is removed from duty and directed to the approved Occupational Medicine clinic during normal business hours. In an emergent situation the employee is directed to the nearest emergency department,

(a) An injury is only compensable under the _____ Workers' Compensation Statute if it arises out of and in the course of employment, not because it simply occurred on the premises.

(2) Drug Screens

When a work-related incident is reported that requires medical treatment for the purpose of curing, as opposed to an incident that is reported for preventative measures, a split sample drug screen is performed on the same day of the incident. A Non-Negative Rapid Screen results in the employee being investigative leave without pay during the confirmation of the results. If there is confirmation of positive results, the MRO makes a final determination of the drug screen results. A verified Positive outcome results in disciplinary action, up to and including immediate termination of employment under the ____ Drug and Alcohol-Free Workplace Policy and potentially affects the employee's eligibility for workers' compensation benefits. In the event of a Negative result, the suspension is paid and the employee returns to work once cleared. Refusal to submit a specimen result in immediate voluntary resignation of employment and ineligibility for rehire.

c. Treatment

(1) ____ provides services of a healthcare provider, and such medical, surgical, hospital treatment, and transportation expenses to and from healthcare, that are reasonably necessary to cure and relieve the employee from the effects of the injury.

(2) Treatment in an emergency department is considered unauthorized, unless there is an emergent situation. In non-emergent situations the employee must visit the approved Occupational Health clinic. Employees may be financially responsible for treatment sought in an emergency department for a non-emergent injury/illness.

(3) An unreasonable refusal of the employee to submit to medical or surgical treatment may result in the termination of Workers' Compensation benefits, as well as disciplinary action up to and including termination of employment.

d. Return to Work/Modified Duty

(1) If at any time the employee's ability to safely perform his/her job function is in question, the employee is removed from duty and not allowed to resume until the employee has sought authorized treatment and has been cleared to return to work. The employee is paid for the time removed from duty if the employee has Paid Time Off (PTO).

(2) _____ Modified Duty program allows employees to return to work with physical restrictions when they have sustained a work-related Injury. Employees sign a Job Offer Agreement accepting the temporary position and agree to adhere to the physical restrictions set forth by his/her treating provider. If the employee is observed performing work outside the treating provider's restrictions, the employee is subject to disciplinary action up to and including termination of employment.

(3) Employees who have obtained a release from the provider with permanent physical restrictions are taken into consideration for permanent accommodations per applicable ADA law(s).